

MANINGO METHOD PILATES

CLASS LIABILITY WAIVER & INFORMED CONSENT

Held at Host Hampton • 295 Montauk Highway, Suite 7, Speonk, NY 11972

Instructor / Class Provider: Maningo Method (Chelsea Maningo)

Class Location: Host Hampton, 295 Montauk Highway, Suite 7, Speonk, NY 11972

Participant Name: _____

Phone: _____ **Email:** _____

Emergency Contact Name: _____ **Phone:** _____

DEFINITIONS

“Maningo Method” means Chelsea Maningo’s Pilates instruction business, conducted either as Maningo Method LLC, a New York limited liability company (once formed), or as the sole proprietorship of Chelsea Maningo prior thereto, including in either case her substitute and assistant instructors approved to teach at the Premises, her employees, contractors, agents, and affiliates.

“Premises” means the studio space located at 295 Montauk Highway, Suite 7, Speonk, NY 11972, occupied and operated by Host Hampton LLC under a lease with the property owner.

“Released Parties” means, collectively: (a) Maningo Method and Chelsea Maningo, individually; (b) Host Hampton LLC and its owners, members, managers, officers, employees, independent contractors, agents, successors, and assigns; and (c) **The Sommer Rolling Meadows Family Limited Partnership**, as the owner and lessor of the Premises, and any property manager engaged by such owner.

1. ACKNOWLEDGMENT OF RISK

I understand that participation in Pilates classes offered by Maningo Method at the Premises involves physical activity including, but not limited to, stretching, strengthening, balance training, and use of equipment (such as mats, props, and resistance tools).

I acknowledge that these activities carry inherent risks, including but not limited to: muscle strain, sprains, joint injury, falls, slips, trips, bruises, fractures, cardiovascular events, and other physical harm. I further acknowledge risks associated with the Premises, including floor conditions, furniture, fixtures, equipment, doors, stairs, parking and walkway areas, and the presence and conduct of other participants, guests, and invitees.

I voluntarily choose to participate with full knowledge and acceptance of these risks.

2. HEALTH & MEDICAL CONDITION

I affirm that I am in good physical condition to participate, or I have obtained clearance from my physician or qualified healthcare provider.

I agree to disclose any injuries, medical conditions, or physical limitations (including recent illness, surgery, or chronic conditions) to the instructor prior to participation, and to update the instructor of any changes.

3. PRENATAL PARTICIPANT ACKNOWLEDGMENT (IF APPLICABLE)

If I am pregnant, I acknowledge and agree that:

- I have received approval from my healthcare provider to participate in Pilates exercise.
- I understand that pregnancy involves physiological changes that may affect balance, joint stability, endurance, and overall physical response to exercise.
- I will modify movements as needed and follow instructor guidance specific to prenatal safety.
- I will immediately stop exercising and notify the instructor if I experience any warning signs, including but not limited to dizziness, shortness of breath, pain, bleeding, or discomfort.
- I accept full responsibility for monitoring my condition and well-being during participation.

4. PERSONAL RESPONSIBILITY

I agree to:

- Work within my own limits at all times;
- Modify or stop exercises when necessary;
- Communicate openly with the instructor regarding any discomfort or concerns;
- Use equipment only as directed and report any equipment concerns immediately;
- Refrain from participation if I am under the influence of alcohol, drugs, or any substance that could impair my ability to participate safely.

5. RELEASE, WAIVER OF LIABILITY, AND COVENANT NOT TO SUE

In consideration of being permitted to participate in Pilates classes offered by Maningo Method at the Premises, I, on behalf of myself and my heirs, spouse, executors, administrators, personal representatives, and assigns, hereby **RELEASE, WAIVE, DISCHARGE, AND COVENANT NOT TO SUE** the Released Parties from any and all liability, claims, demands, actions, and causes of action of any kind, whether known or unknown, arising out of or related to my participation in the classes or my presence on the Premises, including but not limited to claims arising from the **NEGLIGENCE** of any Released Party, the condition of the Premises, the acts or omissions of other participants or invitees, or the use of any equipment or props — to the fullest extent permitted by New York law.

I understand and agree that this release is intended to be as broad and inclusive as permitted by the laws of the State of New York, and that if any portion is held invalid, the remainder shall continue in full legal force and effect.

6. INDEPENDENT ROLES; PREMISES ACKNOWLEDGMENT

I understand that Pilates classes are provided exclusively by Maningo Method and that:

- Host Hampton LLC is a venue operator that licenses the use of a portion of the Premises to Maningo Method. Host Hampton LLC is NOT the instructor or class provider, and does not design, supervise, direct, or control the classes, instruction, equipment selection, or exercise programming.
- **The Sommer Rolling Meadows Family Limited Partnership** is the owner and lessor of the building and is not involved in the classes, the operation of the studio, or the conduct of any instructor or participant. Host Hampton LLC occupies the Premises as a tenant under a lease.
- Maningo Method, Chelsea Maningo, and any approved substitute or assistant instructors are independent third parties — not employees, agents, partners, or joint venturers — of Host Hampton LLC or The Sommer Rolling Meadows Family Limited Partnership.
- Classes may, on occasion, be taught by approved substitute or assistant instructors employed or engaged by Maningo Method. This waiver applies equally to all such instructors.

I assume the risks associated with the physical Premises, including but not limited to slips, trips, falls, floor conditions, furniture, fixtures, doors, stairs, parking and walkway areas, and the presence of other guests and invitees. Neither Host Hampton LLC nor The Sommer Rolling Meadows Family Limited

Partnership is responsible for any personal property I bring onto the Premises, including loss, theft, or damage.

7. INDEMNIFICATION

I agree to indemnify, defend, and hold harmless the Released Parties from and against any claims, damages, losses, judgments, costs, and expenses (including reasonable attorneys' fees) brought by me, my family, my estate, or any third party arising out of or related to my participation in the classes or my presence on the Premises, except to the extent caused by the sole gross negligence or willful misconduct of the party seeking indemnity.

8. EMERGENCY MEDICAL CARE

I authorize the Released Parties to summon emergency medical assistance and to administer or arrange basic first aid if they reasonably believe I require it. I accept full financial responsibility for any resulting medical treatment, transport, or expense. I confirm that my emergency contact information above is accurate and that the Released Parties may contact that person in the event of an emergency.

9. MERCHANDISE PURCHASES (IF APPLICABLE)

I acknowledge that Maningo Method may offer apparel, accessories, or other merchandise for sale on or in connection with the Premises. I understand and agree that:

- Any merchandise sold is sold solely by Maningo Method, and not by Host Hampton LLC or The Sommer Rolling Meadows Family Limited Partnership;
- Any disputes regarding merchandise (including but not limited to quality, fit, defects, refunds, or product liability) are exclusively between me and Maningo Method;
- Host Hampton LLC and The Sommer Rolling Meadows Family Limited Partnership have no involvement in, and assume no responsibility for, Maningo Method merchandise transactions, and I release them from any claims arising therefrom.

10. GOVERNING LAW; VENUE; SEVERABILITY; ENTIRE AGREEMENT

This waiver is governed by the laws of the State of New York, without regard to conflict-of-law principles. Any dispute arising out of or related to this waiver, my participation in the classes, or my presence on the Premises shall be brought exclusively in the state or federal courts located in Suffolk County, New York, and I consent to the jurisdiction of such courts.

If any provision of this waiver is found unenforceable, the remaining provisions shall remain in full force and effect, and the unenforceable provision shall be enforced to the maximum extent permitted by law. This waiver constitutes the entire agreement between the parties regarding the subject matter and supersedes any prior oral or written understandings.

11. PHOTO / MEDIA RELEASE (OPTIONAL)

I grant permission for photos or videos taken during class or on the Premises to be used for marketing or promotional purposes by Maningo Method and Host Hampton LLC, on their respective websites, social media, and other marketing materials, without compensation.

☐ **YES, I consent** ☐ **NO, I do not consent**

12. AGREEMENT & SIGNATURE

I have read and fully understand this waiver. I am signing it freely and voluntarily, and I acknowledge that I am giving up certain legal rights, including the right to sue the Released Parties for negligence to the fullest extent permitted by New York law. I confirm that I am at least 18 years of age, or that a parent or legal guardian is signing on my behalf below.

Participant Printed Name: _____

Participant Signature: _____

Date: _____

PARENT / LEGAL GUARDIAN CONSENT (Participants Under 18)

I am the parent or legal guardian of the minor participant named above. I have read and understood this waiver, consent to the minor's participation, and agree that this waiver binds me and the minor to the fullest extent permitted by law. On my own behalf and on behalf of the minor, I release, waive, and covenant not to sue the Released Parties to the same extent set forth above, and I specifically waive any derivative claims I may have arising from the minor's participation. I also agree to indemnify the Released Parties as set forth in Section 7.

Minor Participant Name: _____

Minor's Date of Birth: _____

Parent/Guardian Printed Name: _____

Parent/Guardian Signature: _____

Relationship to Minor: _____ **Date:** _____